

**Risk neutral**

| Fee rule              | Meritorious-P<br>shortfall | Nonliable-D<br>burden | Liabe-D<br>excess burden | Gross outcome<br>error | Total<br>expenditures |
|-----------------------|----------------------------|-----------------------|--------------------------|------------------------|-----------------------|
| American              | 0.216                      | 0.222                 | 0.028                    | 0.278                  | 0.292                 |
| Trial Fee-Shifting    | 0.209                      | 0.198                 | 0.047                    | 0.277                  | 0.266                 |
| Complete Fee-Shifting | 0.232                      | 0.165                 | 0.075                    | 0.285                  | 0.259                 |

**Risk averse**

| Fee rule              | Meritorious-P<br>shortfall | Nonliable-D<br>burden | Liabe-D<br>excess burden | Gross outcome<br>error | Total<br>expenditures |
|-----------------------|----------------------------|-----------------------|--------------------------|------------------------|-----------------------|
| American              | 0.256                      | 0.256                 | 0.011                    | 0.344                  | 0.336                 |
| Trial Fee-Shifting    | 0.224                      | 0.164                 | 0.017                    | 0.286                  | 0.183                 |
| Complete Fee-Shifting | 0.241                      | 0.166                 | 0.038                    | 0.298                  | 0.225                 |